



**Bureau of Experts at the Council of Ministers
Official Translation Department**

**Law of Marine Scientific Research in the Maritime Zones of the Kingdom of Saudi
Arabia**

Royal Decree No. M/12
February 3, 1993

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.

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Law of Marine Scientific Research in the Maritime Zones of the Kingdom of Saudi Arabia

Article 1

This Law shall apply to all maritime zones under the sovereignty of the Kingdom of Saudi Arabia or under its territorial jurisdiction, both in the Red Sea and the Arabian Gulf, in accordance with the laws in force in the Kingdom, (hereinafter referred to as “maritime zones”).

Article 2

For the purpose of application of this Law, the following terms shall have the meanings assigned thereto:

1. **Marine Scientific Research:** All scientific and technical activities that take place in maritime zones, including photographing and recording for scientific purposes, as well as marine studies or research and the search for marine resources.
2. **Vessel:** Any floating craft used in marine scientific research in accordance with the applicable international laws.
3. **Person:** Any natural or legal person.
4. **Marine Environment Pollution:** Direct or indirect introduction of any substances or energy which results, or is likely to result, in deleterious effects, such as harm to marine life and resources which might impact fishing and other legitimate uses of the sea, as well as deterioration of the quality of sea water for various uses.
5. **Competent Agency:** The General Directorate for Military Survey at the Ministry of Defense and Aviation.

Article 3

1. The Kingdom of Saudi Arabia shall have the exclusive right to regulate, license, conduct, and monitor marine scientific research in the maritime zones.
2. Marine scientific research may not be conducted in the maritime zones except after obtaining an explicit license issued in accordance with the provisions of this Law, provided that:
 - a) the research is conducted solely for appropriate purposes; and
 - b) the research does not harm other legitimate uses of the sea.
3. Marine scientific research activities in the maritime zones shall not constitute a legal or actual basis to claim any part of the marine environment or its resources.



Article 4

1. The Competent Agency in the Kingdom must not give approval to any state, any specialized international organization, or any other foreign person to conduct marine scientific research if it is established that the license applicant has provided incorrect information or if such research may result in any of the following:
 - a) Direct impact on the exploration and utilization of living and non-living natural resources.
 - b) Deep drilling on the continental shelf.
 - c) Use of explosives affecting living and non-living resources.
 - d) Introduction of harmful substances to the marine environment.
 - e) Establishment of artificial islands or permanent installations or structures.
 - f) Prejudice to the rights of the Kingdom over its maritime zones.
2. Marine scientific research relating to petroleum exploration shall be subject to relevant laws.

Article 5

1. The license application shall be submitted to the Competent Agency at least 60 days prior to the date specified for the commencement of marine scientific research activities for Saudi applicants and at least six months for non-Saudi applicants.
2. In the case of non-Saudi persons under contract with a government agency in the Kingdom or with a Saudi person, the license application shall be submitted by the government agency or the Saudi person at least 90 days prior to the date specified for the commencement of research activities.
3. The license application shall be submitted at least six months prior to the date specified for commencement of research if the proposed marine scientific research is a joint venture between Saudi and non-Saudi persons.

Article 6

The application for a marine scientific research license must include copies of the research projects intended to be carried out, provided that they include the following:

1. Information about the person who will carry out the research, along with his previous activities and places of practice, as well as the foreign entities with whom he previously worked in similar projects.
2. The entity responsible for the project and its funding sources.
3. Names of the research team members and names of assistant technicians along with their specialties, expertise, and nationalities.
4. The nature of the research project as well as its program, objective, and timeline.
5. Accurate demarcation of the maritime zones where the research will take place.
6. The scientific and technical methods and means intended to be used in the research, including accurate description of the vessel, or vessels, to be used specifying its name, type, nationality, payload, model, and category, in addition to a full description of research devices and equipment and their specifications.
7. Expected dates for the first arrival and last departure of the research team and the vessels used as well as the expected dates for the installation and removal of equipment and devices, as needed.



8. The extent to which the Kingdom can participate in or be represented in the research as perceived by the applicant.
9. Providing a scientific study on the effects of conducting marine scientific research in the maritime zones.

Article 7

The submission of the license application to the Competent Agency must be accompanied by the following undertakings:

1. To provide suitable places in the vessel, or vessels, used for marine scientific research to accommodate the person(s) that the Competent Agency may select to accompany the research team in its work.
2. To provide the Competent Agency with preliminary reports along with final results and findings after completion of the research project as well as any requested research data, samples, and results along with the evaluation and interpretation of the same, free of charge.
3. To immediately notify the Competent Agency of any change in the research program.
4. To remove research installations or equipment upon completion, unless agreed otherwise.
5. To take necessary measures to protect the marine environment against any pollution or damage that may result from the research.
6. Not to interfere with the activities performed or licensed by the Kingdom regarding the exploration and exploitation of living and non-living resources in the maritime zones.
7. To adhere to maritime laws applicable in the Kingdom as well as applicable rules of the international law.
8. To adhere to the national laws of the Kingdom.
9. To safeguard and protect objects of an archaeological and historical nature found at the sea and notify the Competent Agency of their exact locations.
10. Not to give any information, data, or results to any other party if marine scientific research is conducted in the Kingdom's internal waters or territorial sea except when approved by the relevant agencies.

Article 8

1. The Competent Agency shall have the right to suspend and cease any marine scientific research activities carried out in the maritime zones if such activities violate the statements and undertakings based on which the marine scientific research license is issued.
2. The person responsible for the research must stop all activities for which a suspension or cessation decision is issued by the Competent Agency after being notified of such decision.
3. The Competent Agency may cancel the suspension or cessation decision issued under paragraph (1) once the person responsible for the research complies with the required conditions.
4. The person responsible for the research may appeal against the suspension or cessation decision issued under paragraph (1) within 60 days from the date of his knowledge of said decision, and the appeal shall be submitted to the Board of Grievances in accordance with its law.



Article 9

1. When conducting scientific research in the Kingdom's internal waters or territorial sea, the Competent Agency shall have the right to carry out the following:
 - a) Terminate the scientific research activities at any time and for any reason as deemed appropriate by the Competent Agency.
 - b) Conduct, at any time and without prior notice, an inspection of scientific research sites and equipment.
 - c) Monitor the entry and exit of vessels and individuals to and from the scientific research area.
 - d) Require the person responsible for the research to submit at least quarterly periodic reports on the methods of the scientific research in the internal waters or the territorial sea and the results achieved.
2. If the scientific research in the internal waters or territorial sea is terminated, the decision of the Competent Agency shall be final and not subject to appeal.
3. The Competent Agency shall have the right to obtain an agreed-upon percentage from the revenues of the scientific research in the internal waters or territorial sea, or from the revenues of utilizing the findings of such research.

Article 10

When using scientific research installations and equipment, the following must be observed:

1. Marine scientific research installations and equipment shall bear identification marks showing the country of registration or country of ownership, and shall be equipped with suitable and internationally recognized warning signs to ensure maritime and air navigation safety.
2. Such installations and equipment shall not obstruct the routes designated for international navigation.

Article 11

Naming of scientists, experts, and technicians to participate in marine scientific research activities shall be in coordination with the relevant agencies. Participating researchers shall submit a report to the Competent Agency on the results of their participation.

Article 12

1. The scientific research and related activities shall be monitored by inspectors appointed by the Competent Agency.
2. When the research license is granted to non-Saudi persons or entities, monitoring shall commence with the arrival of the vessel to the research site, and continue until the completion of field research activities or the departure of the vessel from the maritime zones and the submission of the results.
3. Inspectors shall submit periodic reports to the Competent Agency on the various activities related to the research and the methods used.

Article 13

This Law shall not affect the rights established for the Kingdom as a coastal state, in accordance with international conventions and other rules of the international law, as well as the national laws in force in the Kingdom.



Article 14

1. All communications, requests, and notifications shall be made through diplomatic channels when applying the provisions of this Law to a marine scientific research project carried out by foreign government vessels or vessels of competent international organizations.
2. Countries which do not have diplomatic representation in the Kingdom shall be contacted through the channels the Ministry of Foreign Affairs deems appropriate.

Article 15

1. Without prejudice to any harsher penalty prescribed under Sharia or the laws applicable in the Kingdom, and without prejudice to the provisions of the international law, any person who violates this Law shall be punished by imprisonment for a period not exceeding two years and a fine of no less than two hundred thousand Saudi riyals, or by either penalty.
2. Research vessels and equipment may be subject to confiscation in cases of serious breach of the provisions of this Law.
3. A person who violates this Law or any agreed-upon terms shall be compelled to rectify any damages resulting from such violation. If he fails to do so within 30 days from the date of notification of such violation by the Competent Agency, the Kingdom may rectify the violation at the expense of the violator.

Article 16

The provisions of Article 15 shall not preclude the right of the Kingdom to invoke the international liability against any state or international organization whose acts of scientific research in the maritime zones are considered to have violated the rules of the international law and prejudiced the rights of the Kingdom and its international obligations.

Article 17

The Ministry of Defense and Aviation shall issue the implementing regulations of this Law after consultation with the relevant agencies.

Article 18

The provisions of this Law shall not apply to scientific research vessels of public institutions in the Kingdom, provided that such vessels observe safety, security, and marine pollution provisions applicable in the Kingdom.

Article 19

This Law shall be published in the Official Gazette and shall enter into force 30 days after the date of publication.